

STANDING ORDER No. 410/2012

Subject: - Guidelines for initiating action against false complaints.

Introduction:-

Sometimes false complaints are made with a motive to use the police to wreak vengeance on their opponents or settle personal scores. False complaints are also made to claim insurance money by cooking up false stories of theft, robberies, fires or for grabbing properties. There are many other reasons for filing false complaints and FIRs with police. In such cases, it is the duty of police to probe carefully, find out the truth and ensure that no innocent person gets unnecessarily harassed.

Action by Police in such cases -

- (1) **When a false FIR is registered:** After concluding the investigation in such cases, the final report should be submitted u/s 173 Cr.P.C. to the court and in the final report itself, the court may be requested to institute proceedings u/s 182/211 IPC against the complainant who had got a false case registered by giving misleading facts.
- (2) **When a hoax call is made:** When it becomes clear on enquiry that a hoax call has been made deliberately and maliciously, an enquiry report, along with relevant evidence, should be submitted to the concerned court for institution of proceedings u/s 182/211 IPC against the offender. On being satisfied with the police report and available evidence, the court may issue notice to the offender or order the police to register a case against the offender and investigate the same.

In serious matters in which hoax calls lead to delays of flights, trains, hamper court proceedings or cause heavy strain on resources of police and other agencies causing inconvenience to public, the concerned police station should proceed against the offender u/s 66 A of the I.T. (Amendment) Act-2008, which is a cognizable offence and carries punishment upto 3 years. All investigating officers and supervisory officers should meticulously ensure compliance of these guidelines while initiating action against false complaints or hoax calls.



**(NEERAJ KUMAR)
COMMISSIONER OF POLICE
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O.B. NO.22/2012

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